

Applicable Law Acts

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User Query :

A business dispute is pending in court. One party has produced a digitally signed PDF agreement and a series of emails to prove that I accepted certain contractual terms. I believe the PDF may have been altered after I signed an earlier version and I dispute that the final document is genuine. What legal provisions govern the authenticity and admissibility of these digital records?

Job Id. : qwen3-30b/Scenario 13/Combined Act

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NyaySahayak

AI-Powered Legal Intelligence Platform

INFORMATION TECHNOLOGY (IT) ACT, 2000

APPLICABLE SECTIONS

Section 3 — Authentication of electronic records

Relevant to digital-signature authentication.

Section 3A — Electronic signature

Provides the framework for reliable electronic signatures/authentication techniques.

Section 4 — Legal recognition of electronic records

Recognises electronic records where law requires writing.

Section 5 — Legal recognition of electronic signatures

Recognises electronic signatures where law requires signing/authentication.

Section 14 — Secure electronic record

Relevant if a security procedure was applied to the record.

Section 15 — Secure electronic signature

Relevant if the signature satisfies the statutory secure-signature conditions.

INTERPRETATION & LEGAL ANALYSIS

AI-generated legal interpretation

- 1 These IT Act provisions concern authentication and legal recognition. Do not substitute adjudication provisions or repealed evidence-law numbering for the current authentication framework.

✓ STRENGTHS & RIGHTS

- 1 A digitally signed PDF directly raises authentication and secure-signature questions.

✗ RISKS & OBLIGATIONS

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Whether the final PDF was altered is a factual/forensic question; the mere presence of a digital signature does not automatically prove every version is genuine.

PROCEDURAL NOTES & COMPLIANCE STEPS

Actionable steps for compliance and grievance redressal

COMPLIANCE STEPS

1. Preserve both versions, signature certificate details, hashes and email headers.

BHARATIYA NYAYA SANHITA (BNS), 2023

APPLICABLE SECTIONS

Section 336

— Forgery

Only if someone intentionally made a false document/electronic record with the statutory fraudulent/injurious intent.

Section 340

(2) — Using a forged document or electronic record as genuine

Only if a person knowingly/fraudulently used a forged version as genuine.

INTERPRETATION & LEGAL ANALYSIS

AI-generated legal interpretation

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A civil authenticity dispute does not automatically establish criminal forgery. These provisions are conditional on proof of deliberate falsification and the required mental state.

✓ STRENGTHS & RIGHTS

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The allegation that the final PDF was altered could support investigation if evidence shows intentional falsification.

✗ RISKS & OBLIGATIONS

1 Do not state forgery as established merely because authenticity is disputed.**PROCEDURAL NOTES & COMPLIANCE STEPS***Actionable steps for compliance and grievance redressal***COMPLIANCE STEPS**

1. Treat BNS as conditional; the primary question is evidentiary/authentication.

BHARATIYA SAKSHYA ADHINIYAM (BSA), 2023**APPLICABLE SECTIONS****Section 61 — Electronic or digital record**

The PDF and emails are electronic records.

Section 62 — Special provisions as to evidence relating to electronic record

Electronic contents are proved under **section 63**.

Section 63 — Special provisions relating to electronic records

Central to proof of the PDF/email records.

Section 66 — Proof as to electronic signature

Where the electronic signature is alleged to be the subscriber's, proof is required except for a secure electronic signature.

Section 73 — Proof as to verification of digital signature

Allows verification of a digital signature.

Section 85 — Presumption as to electronic agreements

Applies to an electronic record purporting to be an agreement containing electronic/digital signatures of the parties.

Section 86 — Presumption as to electronic records and electronic signatures

Relevant to secure electronic records/signatures; outside the secure category it does not create a general authenticity presumption.

Section 90 — Presumption as to electronic messages

May apply to the emails, but does not presume who sent the message.

INTERPRETATION & LEGAL ANALYSIS

AI-generated legal interpretation

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- This is primarily a BSA authenticity/admissibility scenario. The combination of sections 61-63, 66 and 73 directly addresses electronic records and signature proof; sections 85-86 supply specific presumptions with important limits.

✓ STRENGTHS & RIGHTS

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- The disputed signature/version can be technically verified rather than accepted on face value.

✗ RISKS & OBLIGATIONS

- 1
- Do not claim a blanket presumption that all digitally signed PDFs are unaltered; **section 86** is limited to secure electronic records/signatures.

PROCEDURAL NOTES & COMPLIANCE STEPS

Actionable steps for compliance and grievance redressal

COMPLIANCE STEPS

1.
- Compare hashes/versions, verify the certificate/public key and preserve complete email headers.

DIGITAL PERSONAL DATA PROTECTION ACT (DPDP), 2023

INTERPRETATION & LEGAL ANALYSIS

AI-generated legal interpretation

- 1
- The dispute concerns contract authenticity and evidence, not personal-data processing obligations.

✓ STRENGTHS & RIGHTS

1 Keeps the analysis scoped.

X RISKS & OBLIGATIONS

1 Separate processing/disclosure facts could raise DPDP questions but are not stated.

PROCEDURAL NOTES & COMPLIANCE STEPS

Actionable steps for compliance and grievance redressal

COMPLIANCE STEPS

1. Current-law caveat (29 Aug 2026): the key substantive private-sector DPDP duties relevant to these scenarios are scheduled to commence on 13 May 2027 under the 13 Nov 2025 commencement notification. Until then, treat these mappings as doctrinal/prospective rather than currently enforceable duties.

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